



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Josue Torres : ORDER
Tax Registry No. 960031 : OF
Housing PSA 4 : DISMISSAL
-----X

Police Officer Josue Torres, Tax Registry No. 960031, having been served with written notice, has been tried on written Charges and Specifications numbered 2020-22300 and 2022-27204, as set forth on form P.D. 468-121, dated July 6, 2020 (amended on January 26, 2023), and October 3, 2022, respectively, and after a review of the entire record, Respondent is found Guilty.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Josue Torres from the Police Service of the City of New York.

KEECHANT L. SEWELL
POLICE COMMISSIONER

EFFECTIVE 6/29/23

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POLICE DEPARTMENT

May 9, 2023

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In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2020-22300
Police Officer Josue Torres	:	2022-27204
Tax Registry No. 960031	:	
Housing PSA 4	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Christine McGrath, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Roger Blank, Esq.
136 Madison Avenue, 6th Floor
New York, NY 10016

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2020-22300

1. Police Officer Josue Torres, while assigned to the 34th Precinct, on or about July 1, 2020, while off-duty, in Bronx County, New York, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer wrongfully engaged in a physical altercation with another person.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

2. Police Officer Josue Torres, while assigned to the 34th Precinct, on or about July 1, 2020, while off-duty, in Bronx County, New York, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer knowingly acted in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than seventeen (17) years old.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

3. Police Officer Josue Torres, while assigned to the 34th Precinct, on or about and between February 1, 2020, and July 1, 2020, wrongfully failed and neglected to follow Department procedures for a change of his residential address.

P.G. 203-18, Page 1, Paragraph 2

RESIDENCE REQUIREMENTS

4. Police Officer Josue Torres, while assigned to the 34th Precinct, on or about June 14, 2020, intentionally damaged the property of an individual known to the Department without permission or authority to do so. (*As added and amended*)

Penal Law § 145.00

CRIMINAL MISCHIEF IN THE
FOURTH DEGREE

Disciplinary Case No. 2022-27204

1. Police Officer Josue Torres, while assigned to the Queens Court Section on or about and between September 22, 2022, and September 27, 2022, engaged in conduct prejudicial to the good order, efficiency, and or discipline of the Department to wit: said Police Officer Torres violated an active Criminal Court and Family Court Order of Protection by sending electronic messages to an individual known to the Department which were outside the scope of what is permitted in the Orders of Protection.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Penal Law § 215.50 (3)

CRIMINAL CONTEMPT IN THE
SECOND DEGREE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 7 and 8, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Complainant¹ and Sergeant Barry Driscoll as witnesses. Respondent called Lisette Torres and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Guilty of the charged misconduct and recommends that he be terminated.

ANALYSIS

Respondent's former girlfriend, with whom he shares two children, is Complainant in these matters. They met in 2015 and began an on-again, off-again romantic relationship (T. 23-25). Complainant testified that when her older son was six months old, she became pregnant with their second son, and she noticed that Respondent's attitude began to change. At the same time, they were experiencing stress in their relationship caused by Respondent's mother. According to Complainant, Respondent became angrier, physically aggressive, and verbally and emotionally abusive toward her (T. 24-25).

They moved into an apartment together in 2016 and cohabitated until September 2018, when Respondent moved out because of his alleged infidelity; he returned after a few months to assist Complainant with their sons, and they resumed living together until February 2020 (T. 25-27, 171). Even after he moved out of the apartment for the second time, Respondent maintained

¹ Complainant's identity is known to the Tribunal. As a victim of alleged domestic violence, her name is omitted from this memorandum.

keys to the apartment; his stepfather, however, had changed one of the locks after Respondent became physically aggressive with Complainant (*Id.*).

Disciplinary Case No. 2020-22300

Complainant

Complainant testified that on or about June 14, 2020, Respondent called her so that he could see his sons. He brought his stepfather with him to Complainant's apartment, and they took the boys back to his stepfather's apartment in the same apartment complex. Respondent then returned to Complainant's apartment (T. 28-29).

Complainant testified that when Respondent returned to her apartment door, she did not open it fully because she was afraid of him; she kept the chain on and spoke with him through the opening. Respondent wanted to discuss the state of their relationship and his desire to move back in. When she tried to shut the door, Respondent pushed against it, causing Complainant to step back so it did not hit her face (T. 29-32).

Complainant testified that Respondent kicked in the door and chased her through the apartment. She ran into the bathroom, closed the door, and pushed herself against it as he tried to force himself in (T. 32-33). She stated that she called 911 and put the phone on speaker but then hung up once Respondent stopped pushing on the door; she terminated the call because she did not want to get him in trouble (T. 33-34). When she left the bathroom, she observed that the apartment had been trashed; there was also a small dent in the door, and the chain had been broken (T. 35; Dept. Ex. 1).

Complainant testified further that on July 1, 2020, she was at home with her sons when Respondent arrived unannounced and requested to see the children. She was uncomfortable with Respondent being there, so she did not open the door and called Respondent's stepfather (T. 39-

40). Respondent returned with his stepfather and began arguing with Complainant about a Facebook post he believed she had created; according to Respondent, the post mocked their breakup and suggested she was seeing other men.

Complainant began to video record Respondent during their argument (Dept. Exs. 2A, 2B, and 2C). Complainant explained there are two separate recordings because she stopped twice to call the police (T. 45-48). She testified that at the end of the second recording, she Googled the nearest precinct and called that number – rather than 911 – because she wanted Respondent to leave (T. 88-89).

During the argument, Complainant confronted him with kicking in her apartment door on June 14, 2020; he responded, “Nobody was at the door” (Dept. Ex. 2C, p. 6). He later, in the same conversation, apologized for kicking the door² (*Id.* at 31).

Complainant told Respondent that she asked him to call before visiting because, “You don’t live here,” to which Respondent replied, “I’m not gonna give you the – I’m not gonna give you, I’m not giving you – I’m not gonna give you shit” and “You owe me” (*Id.* at 33).

Respondent repeatedly told Complainant that “one of us will have to go;” Complainant testified that because of this statement, she “felt threatened,” and she told him she “would never leave [her] children” (T. 87). Respondent then told her, “Don’t worry about it. I’ll take care of it.”³ Complainant stated she “took it as a threat” (T. 88; Dept. Ex. 2C, p. 80-81).

Complainant testified that she called the 46th Precinct⁴ from her bedroom, and when she came out of her room, she saw Respondent had left the apartment (T. 89-90). Respondent's

² Respondent denied in his testimony that he broke the chain on the door by kicking in the door, stating that he only apologized to “pacify her” (T. 336-39).

³ Respondent testified that this statement meant one of them would have to be in charge of the children because he thought he was “the better parent” (T. 340, 378).

⁴ I take judicial notice that Complainant’s residence is located in the 52nd Precinct.

stepfather offered to take the boys; he ultimately went with Complainant's older son, leaving the younger son at the apartment with Complainant (T. 90).

Complainant testified that five or ten minutes after they left, she heard keys at her front door and felt it was Respondent (T. 90-91). She explained she "jumped up to try to lock the door before he was able to enter, [but she] didn't make it" (T. 92). Complainant testified that Respondent entered the apartment, began screaming that she had called the police and was going to get him "jammed up," and then grabbed her right wrist (*Id.*). She attempted to pull away from him, but Respondent pulled her up by her arm, then threw her on the floor (T. 93). She stated she was "terrified because of the look on his face," and described Respondent as "a statue. There was like nothing. It was like he checked out. It was spooky" (T. 94). She testified that while she was on the ground, Respondent "slam[med] [her] on to the floor three times": the first two times, her back hit the floor first, and the third time, she "must have twisted in some way, and [she] hit the left side of [her] face" (*Id.*).

Complainant testified that their younger son was in the same room during this altercation; she knew he was to the left of her because he started screaming (T. 94-95). She stated that Respondent "maybe ... snapped back to reality" when their son began screaming; as Respondent walked toward their son, Complainant seized the opportunity to get away (T. 95). She ran toward the couch, where her phone was charging, but, before she could reach it, Respondent grabbed her by her right wrist again, spun her around, and began to slam her into the couch (*Id.*). She testified that Respondent held both of her wrists in his hands and began to use her own hands to "pound down on [her]" (T. 96). One of her fists punched her in the mouth, bursting her lip; as this occurred, their son was on the other side of the couch cushion screaming (*Id.*).

Complainant testified that Respondent let her go when he received a phone call from his mother, and she started to scream for help when she realized that it was her on the phone (T. 96-97). She testified that Respondent then grabbed her by her face, covered her mouth, and told her to “shut the fuck up” several times (T. 97). She heard him receive a second phone call, then heard him walk away and the apartment door slam (*Id.*). Complainant remained on the floor until police arrived, while her son attempted to comfort her (T. 98). She explained she felt “shocked” and “terrified” about what happened (*Id.*).

As a result of the altercation with Respondent, Complainant had swelling to the left side of her face, a burst lip, bruises around her neck, two “giant circular bruises on [her] chest,” and an injury to her left hand (T. 109; Dept. Exs. 4A-4E, 5A-5F, 7). That same day, she sought medical treatment at St. Barnabas Hospital, where she underwent medical testing, including an MRI, a CAT scan, and an X-ray on her left hand (T. 126; Dept. Ex. 8).

Complainant testified that approximately two or three weeks later, her younger son was showing signs of aggressive behavior and was observed by her mother to take his “life-sized doll and punch it and hit it on the floor” (T. 135). Complainant stated that she watched him a few days later take that same toy, straddle it, slam it into the floor, and hit it (*Id.*).

Sergeant Barry Driscoll

Sergeant Barry Driscoll testified that on July 1, 2020, he was the Patrol Supervisor in the 52nd Precinct (T. 275-76). He testified that he responded to Complainant’s residence at the request of the two responding police officers, Police Officers Astraya and Campoverde (T. 276). When he arrived there, he observed an adult assuming care for Complainant’s son so that she could be interviewed without the child present (T. 277).

Sergeant Driscoll testified that Complainant told him Respondent, her ex-boyfriend, had been at her apartment earlier that morning. They had an argument in which Respondent shouted at her and threatened her. Respondent's stepfather witnessed this interaction. Respondent eventually left the apartment, and Complainant called the precinct to make a complaint for harassment. Respondent then returned to the apartment and was upset that Complainant had called the police (T. 277).

Complainant informed Sergeant Driscoll that Respondent grabbed Complainant by her arms, forced her to the ground, and struck her face and neck with her own hands; he was also slamming her body and the back of her head on the floor. Complainant stated that one of her children was present during this altercation and that when she attempted to call 911, Respondent again grabbed her by her arms and shook her while she was on the floor (T. 278).

Sergeant Driscoll testified that Complainant was upset and short of breath as she related these events to him; she also told him that she did not feel safe and that she “didn’t want to do this anymore” (T. 278). He testified that he observed injuries to the left side of her neck and the lower part of her face (T. 279). He testified that Department’s Exhibits 4A through 4E were fair and accurate representations of the injuries he observed when he first saw Complainant on July 1, 2020 (*Id.*). Sergeant Driscoll also testified that he interviewed Respondent at the apartment; according to Driscoll, Respondent asked him if he could “tell his side of the story” (T. 279-80).

Respondent then told Sergeant Driscoll that he and Complainant had argued that morning, that he had gone to her apartment straight from work and had not been drinking. He explained further that Complainant felt safer with his stepfather present, although he and his stepfather “do not communicate well.” Respondent stated that the argument escalated and that

he eventually returned to the apartment, confronting Complainant about why she called the police, knowing that it could affect his job (T. 280).

During this interaction, Sergeant Driscoll testified that Respondent's demeanor was primarily calm but that he seemed somewhat upset. He did not observe any physical injuries on Respondent, and Respondent did not complain of any injuries. After speaking with Respondent, Sergeant Driscoll re-interviewed Complainant and directed the responding police officers to take photographs of her injuries. He then placed Respondent under arrest for Assault in the Third Degree; Sergeant Driscoll and his operator, Police Officer McCormack, transported him to the precinct for arrest processing (T. 281-82).

Hospital Records

The hospital records admitted in evidence show that the triage nurse observed "right side of upper lip abrasion and ecchymosis on left side of neck; abrasion on inside right upper lip." In the narrative section of the intake report, Complainant stated, "I was attacked." The report noted, "Ex-boyfriend assaulted her in her apartment and used her own hands to hit her, and she remembers hitting her head and face on the ground/wall at least three times."

The report further documented the "Chief complaint: per EMS, s/p assault by ex-boyfriend with pain in her left chin, back of the head and scratch to neck."

The Emergency Department evaluation noted,

"s/p assault with left facial pain. Was assaulted by ex-boyfriend, states, 'He used my head like a basketball,' and hit her in the head several times with her own hands, forced her on the ground, and hit her left side of the face onto the ground. Pain mostly at the left side of face, non-radiating, achy, worse with palpation and opening/closing of mouth, has not tried anything for it. Admits to some pain of eyes when light is shined in it. Admits to diffuse headache, non-radiating, not worse or better with anything. Denies any vision changes, no n/v⁵, no abdominal pain, no numbness/tingling/weakness, no cp⁶, no sob⁷"

⁵ Nausea vomiting.

⁶ Chest pain

⁷ Shortness of breath

The hospital records also detailed the physical examination which was performed on Complainant:

“Physical exam Head: noted edema and tenderness of the L mandibular region, TTP (*thrombotic thrombocytopenia purpura*), no obvious deformities, no battle signs b/l, no raccoon eyes b/l. Ext: No clubbing, edema, cyanosis. Noted TTP of the L wrist, no obvious ecchymosis/erythema/obvious deformities.”

The medical diagnosis and treatment plan were also detailed in the records:

“Initial impression and E.D. action plan: 36 yo F without reported pmhx⁸ presenting s/p assault. VSS⁹ currently. Physical exam shows TTP of left mandible, ecchymosis in pattern described above, concern for maxfac fracture, and TTP of the L wrist, concern for wrist fracture. Does not meet criteria for Head CT at this time by the Canadian Head CT criteria. Plan: maxfac C.T., L hand/wrist x-ray, Tylenol, Robaxin¹⁰, reassess.”

(Dept. Ex. 8).

Lisette Torres

Lisette Torres testified that she is Respondent's mother and a retired Member of Service. She called him twice on July 1, 2020 (T. 325). In the first call, she asked Respondent if he was okay, and he responded, “She's going crazy; I don't know what's wrong with her” (T. 326). Torres recalled hearing Complainant's voice yelling in the background (T. 326-327). According to Torres, Respondent asked Complainant, “Why are you yelling?” (T. 327). The call lasted less than a minute before she hung up (T. 328).

Torres denied that she had any video conversation with Complainant that day and did not see her until Complainant returned from the hospital (*Id.*).

Torres testified that she had a second telephone conversation with Respondent to determine if “the police were there.” She advised him to return to Complainant’s apartment

⁸ Past medical history.

⁹ Vital signs stable.

¹⁰ Robaxin is a muscle relaxer.

because if he did not return, he could be disciplined for leaving the scene of an incident (T. 324-25).

Respondent

Respondent testified that he went to Complainant's apartment on July 1, 2020, to see his sons, but she refused to permit him to enter because she did not feel safe and wanted to wait until his stepfather arrived (T. 334). He acknowledged that once his stepfather came, he entered the apartment with him, and the three adults had a conversation (T. 335-36).

While he further acknowledged hearing himself on Department's Exhibit 2A apologize for kicking in Complainant's door on June 14, 2020, he claimed that he never kicked the door in, and he only apologized to placate Complainant (T. 336, 339). He further explained that when he said, "one of us has to go," he meant that someone would have to be in charge of the children because he "was the primary caretaker. At the time, I did everything with the boys. I took them to school; I paid for everything. I paid for their education, groceries and, you know, took them to doctor's appointments, and unfortunately, we – no matter how hard I tried, we just could not come to any sort of agreement as far as anything pertaining to the boys" (T. 340).

Respondent testified that he overheard Complainant calling someone and stating, "It's not an emergency," which led him to suspect she had called the police (*Id.* at 393). He testified further that while he did not recall Complainant asking him to leave her apartment, his stepfather suggested that he leave, and he did so (T. 341, 393). Once he left the building, he called his mother, related to what had transpired in the apartment, and shared his concern that Complainant had called the police (T. 341-42). According to Respondent, his mother told him that if the police had been called, he should return to the apartment (T. 342).

Respondent testified that he returned to the apartment and let himself in with his key; when he saw Complainant, he asked her if his stepfather was there (*Id.*). According to Respondent, Complainant “kind of speed walk[ed] toward [him]” and became “extremely belligerent, erratic” (T. 343, 383). He stated that he tried to calm her down, and she started swinging her arms, so he tried to restrain her, and he believed she hit herself in the face (T. 343, 383). He claimed he restrained her by grabbing her wrists (T. 384). Respondent testified that his son was in the room with them as this incident was happening and that he was crying (*Id.*). He stated that he received a phone call from his mother and that Complainant began screaming, so he asked her, “Yo, why you screaming?” (T. 345).

He testified on cross-examination that he was holding his son while on the phone; he then put his son down and left him in the apartment with Complainant when he heard the bell ring before going to open the door to the building for the police (T. 386).

Credibility

In credibility assessments, the trier of fact should consider a wide range of factors, including, but not limited to, witness demeanor, corroborating evidence, the consistency of a witness account both at trial and over time, the degree to which the witness is interested in the outcome of a case, the potential prejudice or bias of the witness, and perhaps most basically the degree to which the witness accounts are logical and comport with common sense and general human experience.

An overlay to this dynamic is the complexity of assessing allegations of assaults by an intimate partner. However, the finder of fact must always weigh the emotional complications of bringing such charges against Respondent's due process right to have all evidence suggesting that the incident did not occur fairly evaluated and considered. The most crucial factor for the

Tribunal to consider is the individual motivations of the parties to provide truthful information. When placed in proper context, the behaviors of the parties before and after the incident in question may also reveal evidence relevant to a credibility assessment.

Sergeant Barry Driscoll is a credible, disinterested witness who testified as an investigator and collector of evidence.

Based upon the totality of the circumstances, I find Complainant's testimony credible. I had the opportunity to observe her demeanor as she testified before this Tribunal over the better part of a trial day. It is my judgment that she was logical, forthcoming, and consistent.

As the mother of two of Respondent's children, she has an arguable interest in the outcome of this proceeding, as it could well affect Respondent's ability to provide financial support. In this case, however, the accusatory nature of her allegations operates against such interest, which is indicia of her veracity.

Counsel for Respondent attempted to diminish Complainant's credibility by highlighting her profession as an actor, suggesting that she could feign emotion during her testimony and in the statements she made to police immediately after the alleged assault. He also argued that Complainant was making a false accusation against Respondent to have his parental rights terminated so that she could relocate to California, where the bulk of her family resides. Finally, counsel confronted Complainant with allegedly false statements she made on a housing application, which he contended mischaracterized her relationship with Respondent.

I have considered the above issues and factored them into my credibility assessment. In the view of this Tribunal, any concerns counsel raised about Complainant's credibility were allayed by: (1) the extensive corroboration of her injuries, as documented in Department's Exhibits 4A-4E and 8, and Sergeant Driscoll's testimony; (2) her demeanor before and after the

alleged assault on July 1, 2020, as captured in Department's Exhibits 2A, 2B and 3A; (3) Respondent's demeanor and language immediately before the July 1, 2020, alleged assault, as captured on Department's Exhibits 2A and 2B; and (4) the evidence of Respondent's violent acts on June 14, 2020, as described in her testimony and Department's Exhibit 1.

In contrast, Respondent's testimony before this Tribunal was self-serving, illogical, and unworthy of belief. At times, he attempted to reframe some of his actions on July 1, 2020, in a manner later undermined by independent evidence. On other occasions, he was evasive when the answer to a question might tend to undercut his position at trial.

For example, Respondent testified that after his altercation with Complainant, he left the apartment and went downstairs to let the police into the building because the buzzer for the front door was usually broken (T. 345). The video evidence in Department's Exhibit 3A shows Police Officer Astraya and others being buzzed into the building, then encountering Respondent standing in the lobby. Respondent allowed the police officers to walk past him without identifying himself, then entered the elevator with them. The video shows that only after he learned which floor they were going to did he identify himself as a police officer (Dept. Ex. 3A, T. 387-91).

Respondent also denied having any recollection of speaking to the police officers outside Complainant's apartment (T. 399-400). I note that he was cross-examined on this point after Sergeant Driscoll, who was one of the police officers who responded to her apartment, testified on the Department's direct case (T. 280-81). Driscoll testified credibly that Respondent approached him and asked to "tell his side of the story" (T. 280). After being confronted with Department's Exhibit 3C, Respondent conceded that he admitted to the police officers that he "had not been nice" to Complainant (T. 402).

I further find that his testimony regarding the manner in which Complainant sustained her injuries was a false narrative designed to avoid responsibility for the injuries which the credible, relevant evidence establishes overwhelmingly that he caused.

Lisette Torres has a presumptive bias as Respondent's mother; her relationship with Complainant may provide a secondary, but related, basis to scrutinize her testimony for potential bias. Despite these concerns, she offered some testimonial evidence that was logical and corroborative of the Department Advocate's case. The issues for which Respondent's counsel offered her testimony (*i.e.*, to deny that she and Respondent were estranged at the time of the July 1, 2020, incident; and to deny that she had engaged in a supposed video call with Torres on July 1), were tangential to the material issues in this case.

Specification 1: Wrongfully Engaged in a Physical Altercation

I find that the Department has met its burden by a preponderance of the credible, relevant evidence that Respondent engaged in a physical altercation with Complainant.

As stated above, the Tribunal credits Complainant's testimony regarding the events on July 1, 2020. The testimonial evidence, audio recordings, photographs of the injuries, and medical records, establish that Complainant was the victim of physical violence at the hands of Respondent.

Complainant made a prompt outcry immediately after the assault. The video evidence shows that she was visibly upset when she answered her door and immediately told the police officers, "He came back and attacked me," pointed at Respondent, and stated, "That's the father of my kids" (Dept. Ex. 3A at 03:29-03:36). This declaration qualifies as an excited utterance, a firmly-rooted exception to the hearsay rule, which, by its nature, is deemed trustworthy. All of the surrounding circumstances support a finding that Complainant spoke spontaneously while

under the influence of a startling event and did not have time for reflection or design.

Complainant's subsequent statements to Sergeant Driscoll, the hospital staff, and her testimony before this Tribunal, were all consistent with this excited utterance. As discussed above in the credibility analysis, independent evidence extensively corroborates Complainant's testimony.

In contrast, Respondent's account of the events was illogical and self-serving. Nevertheless, his testimony contained admissions that further corroborated Complainant's testimony.

He admitted that during the altercation, he had Complainant's wrists in his hands, corroborating her assertion that he held her in that manner. He conceded that Complainant was punched in the face with her own hands, although he denied that he used her hands to hit her, instead claiming that the punches were self-inflicted. He also admitted that he received a telephone call from his mother during the altercation and that during the call, Complainant was screaming. This admission corroborates Complainant's testimony regarding the call from his mother.

His characterization of Complainant's demeanor as erratic and belligerent is a more appropriate description of his own demeanor, beginning with his initial verbal altercation with Complainant on July 1, 2020. I find that Respondent was angry at Complainant during the argument which preceded the assault and was told by Complainant and his stepfather several times to stop yelling (*See* Dept. Exs. 2A, 2B).

For example, after Complainant told Respondent that she did not want to be with him, Respondent stated, "One of us has to fucking go . . . One of us will go . . . I am not going to raise my kids separate." When Complainant replies that she will never lose her children, Respondent answers, "Okay." When Complainant asks, "Okay, what?" Respondent states, "Don't worry

about it” (Dept. Ex. 2C, p. 80). Later on in the same recording, Complainant told Respondent he was being “controlling” and that he “cannot do nothing by force,” to which Respondent stated, “I am not going to accept that” (Dept. Ex. 2C, p. 109).

I find that these statements are objectively threatening and indicate Respondent’s refusal to accept that Complainant did not want a relationship with him. He also made unequivocal statements that he intended to secure custody of his children even if that meant that she would somehow cease to be a consideration in the custody arrangement, whatever that portended. Respondent’s aggrieved but inflexible state of mind is circumstantial evidence supporting a finding that he later re-entered Complainant’s apartment by force and physically assaulted her.

Respondent’s other claims that Complainant punched herself in the face and that he was trying to restrain her strain credulity and are contrary to common sense. Complainant’s testimony that Respondent took her hands into his own, then punched her in her face, using her own hands, is too bizarre to be the result of her fabrication. Furthermore, if Respondent honestly thought Complainant was “erratic and belligerent” and that he never touched her, it does not make sense that he would leave his son alone with her if she attempted to injure herself in his presence, as he claimed.

I further find that Respondent’s actions were prejudicial to this Department’s good order, efficiency, and discipline. The evidence, in this case, establishes convincingly that Respondent’s actions on July 1, 2020, were motivated by his anger at Complainant for having the audacity to refuse his request to resume a relationship with him and for calling the police.

First, Complainant had the right to decline a relationship with Respondent, especially one in which she had reason to feel unsafe. The tenor of his comments recorded in Department’s Exhibit 1 communicates to any objective listener that he had no concern for what Complainant

wanted and that, in his mind, his desires were paramount. This mindset is incompatible with providing the selfless service members of this Department are called upon to render daily.

Second, Respondent later physically attacked Complainant, enraged that she had called the police. This Department stands ready 24 hours a day to assist citizens in distress; it is shocking that a Member of Service administered a retributive beating to Complainant for reaching out to the agency, of which he is a part, tasked with assisting in such difficult circumstances.

Accordingly, I find Respondent Guilty of Specification 1.

Specification 2: Endangering the Welfare of a Child

I find that the Department has met its burden by a preponderance of the credible, relevant evidence that Respondent wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer knowingly acted in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than seventeen (17) years old.

It is not in dispute that the Respondent's younger son, who was days from turning three, was present during the July 1, 2020, physical altercation with Complainant. Respondent admitted in his trial testimony that he was in the apartment with Complainant and their younger son when she supposedly initiated a confrontation. As outlined in the analysis of Specification 1, I have found that it was he who initiated a physical altercation with Complainant and assaulted her in front of their son. In Department's Exhibit 3A, the son is seen with Complainant at the door of her apartment while she is speaking with the police after the incident. Finally, I find that assaulting a child's mother in that child's presence is likely detrimental to his mental welfare.

While I permitted Complainant to testify that she observed her younger son displaying aggressive behavior toward a stuffed animal sometime after the assault, I did not consider that as evidence that the child had suffered mental harm.

Accordingly, I find Respondent Guilty of Specification 2.

Specification 3: Failure to Change Address

I find that the Department has met its burden by a preponderance of the credible, relevant evidence that Respondent wrongfully failed to inform the Department of his change of listed residence from February 2020 to July 2020.

Respondent, through his admission, stated that he was no longer living at his listed residence (Complainant's apartment) during that period but was at a different address and updated it with the Department after July 1, 2020 (T. 373). I note that Respondent was extremely evasive when asked questions regarding where he lived during this period. Despite Respondent's explanation that he had moved out because of COVID-19 concerns, he nevertheless was required by the Department to update his residency once a change had occurred.

Accordingly, I find Respondent Guilty of Specification 3.

Specification 4: Intentionally Caused Property Damage

I find that the Department has met its burden by a preponderance of the credible, relevant evidence that Respondent intentionally damaged property on or about June 14, 2020. In the charge, the Department Advocate cited to New York Penal Law § 145.00, Criminal Mischief in the Fourth Degree. Under that statute, "a person is guilty of criminal mischief in the fourth degree when, having no right to do so nor any reasonable ground to believe that he or she has such right, he (1) intentionally damages property of another person."

This Tribunal credits Complainant's testimony that on June 14, 2020, she kept a chain on her apartment door while speaking with Respondent through the open door. She testified further that the chain had been intact that day, and she only observed the chain to be broken after Respondent kicked in her door before chasing her through her apartment.

In the July 1, 2020 recording in Department's Exhibit 2A, Complainant repeatedly confronted Respondent about kicking in her door and chasing her through the apartment. Respondent did not initially deny kicking in the door; instead, he took issue with her characterization of him running into the apartment, stating, "And now I know how exaggerated you are because I didn't run ... I didn't chase you" (Dept. Ex. 2C, p. 6-7). After being told he was being recorded, Respondent again denied kicking in the door but later apologized (*Id.* at 10, 31).

I do not credit Respondent's assertion that a photograph of him and one of his sons at a park, which he contends was taken on June 14, 2020, makes it less likely that he damaged Complainant's apartment door the same day.

Based upon the credible, relevant evidence in the record, I find that Respondent did kick in the door, causing the chain to break, intentionally damaging Complainant's property.

Accordingly, I find Respondent Guilty of Specification 4.

Disciplinary Case No. 2022-27204

The Bronx County Family Court¹¹ and Bronx County Supreme Court¹² each issued Orders of Protection on Complainant's behalf (Dept. Exs. 9 and 10). According to the Supreme Court order, Respondent was to refrain from contact and communications with Complainant,

¹¹ This order remains in force until and including April 24, 2024 (Dept. Ex. 10).

¹² This order remains in force until and including September 14, 2023 (Dept. Ex. 9).

except for contact and communications permitted by a subsequent Family Court order (Dept. Ex. 9). The Family Court Order of Protection allowed contact to “effectuate court ordered visitation or to discuss the health, well-being, and welfare of the subject children in common, utilizing and communication through Family Wizard¹³ application” (Dept. Ex. 10).

On September 22, 2022, Complainant received a message from Respondent via Family Wizard. In that message, Respondent told Complainant, “When are you going to realize that your decision making is complete & utter garbage, and yet you have the gall to take it personal when I’ve critiqued them as it has always been the case. ... I would’ve never had completely uprooted them just for you to have less time with them, good parents don’t do that to their kids, ignorant trash ones do. Stop putting up this façade & stop pretending to be scorned, I know everything. You never had any feelings for me whatsoever I was a means to an end for you & enough with trying to take my rights away. ... I am absolutely disgusted by lack of wherewithal & parenting skills, yet you wonder why I’ve always critiqued you” (Dept. Ex. 11).

On September 27, 2022, Respondent sent additional messages to Complainant, calling her “inconsistent and a pathological liar” and “lazy and a con artist” (Dept. Ex. 11).

Complainant testified that she believed Respondent's messages on September 22 and 27, 2022, were threatening and harassing (T. 156). She explained she was “very upset” because it was a “constant struggle” with Respondent to have their two children get the services in school that they needed (T. 159). She further explained that she moved from the Bronx after the July 1, 2020, assault because Respondent “still had keys to [her] home and his family was trying to take advantage of the situation[,] so [she] moved for [her] safety” (T. 159-60).

¹³ As stipulated by the parties, the Family Wizard application is an authorized messenger application used in Family Court proceedings to permit communication between two parties regarding children and custody exchanges. The messages are memorialized and, if there is a dispute by the parties, can be later reviewed by the court (T. 143-44).

Respondent admitted to sending these messages to Complainant. He testified that, to him, these statements went to the health and welfare of his children because he believed Complainant was “falling short” of being the “best parent she could possibly be” (T. 412). He stated that he was “telling her the truth, and she should know the truth so that way she could improve as a parent” (T. 419). Respondent stated he believed Complainant was trying to take his rights away as a father and that she “trapped” him because “she didn’t want a relationship with [him] ... she just wanted to be a mom. She just wanted to have kids and hav[e] nothing to do with the father” (T. 414, 417).

Credibility

While the Tribunal has made a credibility assessment concerning Disciplinary Case No. 2020-22300, the findings, in this case, do not turn on witness credibility. First, Respondent admitted the alleged misconduct of sending the messages, and Complainant testified credibly that she received them. Second, whether or not the content of the messages constitutes misconduct must be determined by an objective test rather than Respondent's subjective intent when he sent the messages.

Specification 1: Violating the Orders of Protection

I find that the Department has met its burden by a preponderance of the credible, relevant evidence that Respondent engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department by violating the conditions outlined in the Family Court and Criminal Court Orders of Protection.

Respondent admitted to sending all of these messages to Complainant. While some of the messages arguably pertain to the health and well-being of their children, Respondent made condescending and inappropriate remarks to Complainant that are outside the scope of the

Orders of Protection. Calling someone “ignorant trash” is not constructive criticism, despite what Respondent may believe (T. 412). There are other portions of Respondent’s messages in which he asserted that Complainant never cared for him and that she “trapped” him; these statements have nothing to do with the welfare of their children and are centered around Respondent’s sense of grievance.

Accordingly, I find Respondent Guilty of Specification 1.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history also was examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 7, 2015, has been found Guilty of engaging in a physical altercation with his former girlfriend, endangering the welfare of a child, failing to change his address with the Department, intentionally causing property damage, and violating orders of protection. The Department has recommended that his employment be terminated; I concur with their recommendation.

The presumptive penalty for a physical act of domestic violence is 30 suspension days, dismissal probation, and a 24-week counseling program; the aggravated penalty is termination.

The presumptive penalty for a physical act of domestic violence with clear and convincing evidence that Respondent committed a previous act of domestic violence is termination. Respondent's kicking in Complainant's apartment door and chasing her into her

bathroom on June 14, 2020, qualifies as a previous act of domestic violence. While I found that the Department Advocate met her burden of proof by a preponderance of the evidence, I do not find that the quantum of evidence supporting this charge rises to the level of clear and convincing.

The presumptive penalty for the commission of a misdemeanor under New York law is 30 penalty days. Endangering the Welfare of a Child and Criminal Mischief in the Fourth Degree (intentional property damage) are both Class “A” misdemeanors under the New York Penal Law.

The presumptive penalty for violating an Order of Protection is 30 suspension days plus other conditions; the aggravated penalty is termination.

I find that the following aggravating factors are present in this case:

- (1) Respondent entered and remained in Complainant’s home without permission (10 penalty days);
- (2) Respondent caused physical injury to Complainant (10 suspension days – termination);
- (3) Respondent’s lack of candor; and
- (4) Respondent's misconduct is likely to have an adverse impact on the Department with regard to its mission, reputation, credibility, and relationship with the community, and the impact upon public trust.

If this Tribunal were to rely on an arithmetic computation of penalties, Respondent’s recommended penalty would be 70 suspension days, 70 vacation days, and dismissal probation. Under the Disciplinary Guidelines, if the total number of penalty days exceeds 90 days, the presumptive penalty changes to termination or forced separation. In the alternative, the totality of the evidence, in this case, warrants a penalty of termination without regard to the total number of penalty days.

Respondent’s actions on June 14, 2020, and July 1, 2020, manifest a self-centered worldview incompatible with continued service in this Department. He kicked in Complainant's

front door and equivocated about it when she confronted him two weeks later. He was so enraged that she called the police after his lengthy screed on July 1, 2020, did not convince her to take him back that he barged into her apartment and assaulted her in front of their son. He then decided to protect himself from the consequences of his actions by concocting a false narrative maintained through his testimony at the trial.

Members of Service agree to be held to a higher standard of behavior than is required for civilians. The commission of violence against an intimate partner has been found by this Tribunal in numerous cases to be grounds for dismissal (*See Disciplinary Case No. 2020-22965* [February 16, 2023]; *Disciplinary Case No. 2019-21373* [July 20, 2022]; *Disciplinary Case No. 2020-22809* [June 3, 2022]; *Disciplinary Case Nos. 2016-16254 & 2018-19141* [July 9, 2021]).

The evidence, in this case, establishes that Respondent launched a brutal assault against Complainant, in the presence of one of their children, for rejecting his overtures at resuming an intimate relationship on his terms and for calling the police for help. Resorting to violence when another person does not accede to your will is bullying; such selfish and ruthless behavior cannot be tolerated from civilians, let alone Members of Service. The continued presence of a bully in this Department is an affront to police officers this Department recognizes as exemplars of honorable service, many of whom we honor posthumously because they sacrificed their lives while protecting the public. Because of his misconduct, the Respondent has forfeited the moral authority to enforce the Law.

Based upon the entirety of this record, I recommend that Respondent be DISMISSED
from this Department.

Respectfully submitted,

Paul M. Gamble

Paul M. Gamble

Assistant Deputy Commissioner Trials

APPROVED

JUN 29 2023

Keith H. Sewell
KEITH H. SEWELL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER JOSUE TORRES
TAX REGISTRY NO. 960031
DISCIPLINARY CASE NOS. 2020-22300 & 2022-27204

Respondent was appointed to the Department on October 7, 2015. On his three most recent annual performance evaluations, he twice received "Meets Standards" ratings for 2020 and 2022 and was rated "Exceeds Expectations" for 2021.

Respondent has no formal disciplinary history. In connection with the instant matters, he was suspended without pay from July 1 to July 30, 2020, and again from September 28 to October 27, 2022; he remains on modified duty to date. Respondent was also placed on Level 2 Discipline monitoring on September 30, 2022; this monitoring remains ongoing.

For your consideration.

Paul M. Gamble
Paul M. Gamble

Assistant Deputy Commissioner Trials